

26NNCV03328 26NNCV03328

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Case Number: 26NNCV03328 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

DEMURRER; MOTION TO STRIKE

Los

Angeles Superior Court Case # 26NNCV03328

MP: Defendants

Massoud G. Tayyar and 838-840 N. El Molino LLC

RP: Plaintiffs

Henry Eli Villalta Aparicio, Juan Villalata, Handy Abdiel Villalta, Erwin Javier Villalta Aparicio, and Helsy Melissa Villalta Morazan

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Henry Eli Villalta

Aparicio, Juan Villalata, Handy Abdiel Villalta, Erwin Javier Villalta

Aparicio, and Helsy Melissa Villalta Morazan ("Plaintiffs") allege that they were tenants of the residential complex located at 838 North El Molino Ave, Apt. 8, in Pasadena, which was owned and/or managed by Massoud G. Tayyar and 838-840 N. El Molino LLC ("Defendants").

(Compl., ¶¶1-3, 21.) Plaintiffs

allege they entered into a written lease agreement for Apartment 8 with Defendants in 2020. (Id., ¶¶22,

24.) Plaintiffs contend that Defendants engaged

in wrongful conduct including intentionally and/or negligently failing to make

repairs to the property, the common areas, and maintain the habitability of

Apartment 8 and the property throughout Plaintiffs' tenancy. (Id., ¶28.) Plaintiffs assert the unit and the property

generally were unsafe, unsanitary, unhealthy, and uninhabitable and subject to

substandard conditions, including: (a) dampness, moisture, and mold; (b) cockroach

infestation; (c) bed bug infestation; (d) rodent infestation; (e) water leaks; (f)

deteriorating or ineffective weatherproofing and/or waterproofing; (g) inadequate,

defective, and unsafe plumbing conditions; (h) common areas in disrepair and

posing a hazardous condition; (i) crumbling, cracked and/or deteriorating

walls, ceilings, and/or flooring; and (j) bubbling paint. (Id., ¶29.) Plaintiffs allege that Defendants had actual

and/or constructive notice of the defects, as Plaintiffs made multiple

complaints via calls and texts to manager Susana, but Defendants failed to take

timely or reasonable steps to abate or remedy the defects. (Id., ¶¶30, 33-34.)

The Complaint, filed April 28, 2026, alleges: (1) Negligence;

(2) Tortious Breach of Implied Warranty of Habitability; (3) Breach of the

Implied Warranty of Habitability; (4) Private Nuisance; (5) Breach of Covenant

of Quiet Enjoyment; (6) Intentional Infliction of Emotional Distress ("IIED");

(7) Violation of the UCL; (8) Violation of Civil Code, § 1942; and (9)

Violation of the Pasadena Fair and Equitable Housing Charter Amendment.

MOTIONS ON CALENDAR:

On June 30, 2026, Defendants

filed a Demurrer and Motion to Strike portions of the Complaint. On August 28,

2026, Plaintiffs filed an opposition to the demurrer only. On September 3, 2026, Defendants filed a reply

regarding the demurrer only.

LEGAL STANDARD

A.

Demurrer

The grounds for a

demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank, supra*, 39 Cal. 3d at 318.)

Pursuant to

C.C.P. §§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the defect can be cured by amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal. 4th 1074, 1082.)

B. Motion to Strike

Motions to strike are used to reach defects or objections to

pleadings that are not challengeable by demurrer, such as words, phrases, and prayers for damages. (See C.C.P. §§ 435, 436, and 437.) The proper procedure to

attack false allegations in a pleading is a motion to strike. (C.C.P. § 436(a).) In granting a motion to strike made under C.C.P. § 435, “[t]he court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (C.C.P. § 436(a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (C.C.P. § 431.10.)

The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (C.C.P. § 436(b).)

MEET AND
CONFER:

C.C.P. §§ 430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. Upon review, the Court finds the meet and confer requirements were met. (See Vardeh Demurrer Decl., ¶1; Vardeh MTS Decl., ¶1.)

REQUEST FOR JUDICIAL NOTICE:

With the moving papers, Defendants request judicial notice of Exhibits: (A) the Complaint – Unlawful Detainer filed May 18, 2026 in Case No. 26NNCV03915 (“UD Action”); (B) the Complaint filed May 20, 2026 in Case No. 26NNCV03962 (“Civil Action”); and (C) the Pasadena Municipal Code, Article XVIII. The request is granted. (Evid. Code, § 452(b), (d).)

DEMURRER ANALYSIS:

Defendants demur to the Sixth Cause of Action for IIED on the ground that it fails to allege sufficient facts to constitute a cause of action.

The elements of intentional infliction of emotional distress (“IIED”) are: (1)

outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff suffered severe or extreme emotional distress; and (4) the plaintiff's injuries were actually and proximately caused by the defendant's outrageous conduct. (Vasquez v. Franklin Mgmt. Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.)

In order to avoid a demurrer, the plaintiff must allege with great specificity, the acts which she believes are so extreme as to exceed all bounds of behavior usually tolerated in a civilized community. (Id.)

Conduct

to be outrageous must be so extreme as to exceed all bounds of behavior usually tolerated in a civilized community. (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) In addition, the outrageous conduct must be of a nature which is especially calculated to cause, and does cause, mental distress of a very serious kind. (Id.) "Although emotional distress may consist of any highly unpleasant mental reaction such as fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment or worry [citation], to make out a claim, the plaintiff must prove that emotional distress was severe and not trivial or transient." (Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1376.) Such distress must be "of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1004.)

In

the Sixth Cause of Action, Plaintiffs allege that Defendants' acts and omissions, including inducing Plaintiffs to rent a dwelling containing defects, which Defendants had intentionally failed to identify, abate, and repair in an effective manner, was outrageous. (Compl., ¶186.)

They allege "Defendants knew that intentionally failing to identify, abate, and repair the housing defects would expose Plaintiffs to deplorable conditions including exposure to mold mycotoxins and vermin allergens. This was intentionally done to cause harm to Plaintiffs as Defendants knew that a reasonable tenant, including Plaintiffs, would suffer severe emotional distress and Plaintiff did suffer such distress in having to live with such defects and uninhabitable conditions. Despite this knowledge, Defendants took no steps to change their actions." (Id.) Plaintiffs contend Defendants' conduct caused Plaintiff to suffer severe emotional distress, Defendants acted with reckless disregard of the probability of causing Plaintiffs severe emotional distress, and Defendants intentionally failed to repair and maintain the property in an

attempt to save money and increase their cash flow. (Id., ¶¶87-88.) Plaintiffs assert Defendants' conduct was a substantial factor in causing and that Plaintiffs suffered severe emotional distress, as well as respiratory issues, skin allergies, runny nose, watery eyes, coughing, emotional distress, lack of sleep, stress, general discomfort, annoyance, and inability to quietly enjoy their home, and related physical symptoms or bodily injury due to the mold growth in the property. (Id., ¶89.)

Defendants

argue that Plaintiffs use the word "intentional" without supporting facts to show that Defendants acted intentionally, as opposed to negligently.

The

Complaint alleges that "Plaintiffs made actual complaints and attempted to make complaints to Defendants and/or their agents shortly after discovering the various defects mentioned herein, including but not limited to, calls and text messages to manager Susana (last name unknown) on February 15, 2024, February 17, 2024, March 27, 2024, July 19, 2024, July 31, 2024, August 1, 2024, and manager Diana Monotono on June 11, 2025, June 18, 2025, and July 28, 2025.

Discovery is ongoing." (Compl.,

¶33.) Plaintiffs alleged that despite

making such complaints, Defendants intentionally ignored or refused Plaintiffs' requests to make repairs. (Id.,

¶34.)

The Complaint's

allegations do not rise to the level of outrageous conduct. While Plaintiffs allege that Defendants were notified of issues and ignored or refused Plaintiffs' request to make repairs, this does not amount to conduct that is so extreme as to exceed all bounds of behavior usually tolerated in a civilized community.

The

demurrer to the Sixth Cause of Action is sustained with leave to amend.

MOTION TO STRIKE ANALYSIS:

Defendants move to strike allegations for: (1) punitive

damages at paragraphs 43 (First Cause of Action), 57 (Second Cause of Action),

74 (Fourth Cause of Action), 83 (Fifth Cause of Action), and 90 (Sixth Cause of

Action), and the Prayer for Relief at paragraphs 2 (23:11 for the First Cause

of Action), 5 (23:18 for the Second Cause of Action), 10 (24:02 for the Fourth Cause of Action), 8 (24:8 for the Fifth Cause of Action), 16 (24:15 for the Sixth Cause of Action); and (2) treble damages in the Prayer for Relief at paragraph 24 (25:09 for the Ninth Cause of Action).

A.

Punitive Damages

A complaint including a request for punitive damages must include allegations showing that the plaintiff is entitled to an award of punitive damages. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A claim for punitive damages cannot be pleaded generally and allegations that a defendant acted "with oppression, fraud and malice" toward plaintiff are insufficient legal conclusions to show that the plaintiff is entitled to an award of punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) Specific factual allegations are required to support a claim for punitive damages. (Id.)

Civil Code § 3294 authorizes a plaintiff to obtain an award of punitive damages when there is clear and convincing evidence that the defendant engaged in malice, oppression, or fraud. Section 3294(c) defines the terms in the following manner:

(1)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2)

"Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3)

"Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, §

3294(c).)

For example, the

First Cause of Action for Negligence alleges in paragraph 43:

Defendants'

conduct described above was willful, wanton, intentional, despicable, malicious, and initiated with malice and with the intent to knowingly take advantage of, oppress, and injure Plaintiffs. Defendants at all times acted with a willful and conscious disregard of the rights of safety of Plaintiffs. Defendants were at all times aware that there was a high probability that their intentional and/or negligent failure to repair and maintain the Property would injure Plaintiffs and cause them personal injury, emotional distress and property damage. Plaintiffs are therefore entitled to an award of punitive and exemplary damages under and pursuant to Civil Code, Section 3294 and Taylor v. Superior Court (1979) 24 Cal.3d 890.

(Compl., ¶43.) The

other punitive damages paragraphs are similar in form.

The Court has reviewed the Complaint's allegations and finds that the punitive damages allegations are not alleged with the requisite particularity. As currently alleged, they are conclusory regarding allegations for malice and oppression. The motion to strike the allegations for punitive damages is granted with leave to amend.

B.

Treble Damages

In the Ninth Cause of Action, Plaintiffs seek treble damages for a landlord's violation of the Fair and Equitable Charter Amendment. (See Compl., ¶111.)

The Pasadena Municipal Code, § 1817(b) states:

Civil Remedies. A Tenant may bring a civil suit in the courts of the state alleging that a Landlord has violated any of the provisions of this Article or the regulations promulgated hereunder, including that the Landlord has demanded, accepted, received, or retained a payment or payments in excess of the lawful Rent. In a civil suit, a Landlord found to violate

this Article shall be liable to the Tenant for all actual damages, including but not limited to the damages described in Subsection (a) herein. A prevailing Tenant in a civil action brought to enforce this Article shall be awarded reasonable attorney's fees and costs as determined by the court. Additionally, upon a showing that the Landlord has acted willfully or with oppression, fraud, or malice, the Tenant shall be awarded treble damages. No administrative remedy need be exhausted prior to filing suit pursuant to this subsection.

(Def.'s RJN, Ex. C at p. 40 [Pasadena Municipal Code, § 1817(b)].)

Defendants argue that the standard in Pasadena Municipal Code, § 1817(b) is essentially identical to that of Civil Code, § 3294, which require as showing of oppression, fraud, or malice.

For the same reasons above, the Court finds that Plaintiffs' allegations in the Ninth Cause of Action do not rise to the level of showing that Defendants acted with malice, oppression, and/or fraud to warrant treble damages. Thus, the motion to strike the treble damages allegations is granted with leave to amend.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants Massoud G.

Tayyar and 838-840 N. El Molino LLC's Demurrer and Motion to Strike came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The

Demurrer to the complaint is SUSTAINED WITH 20 DAYS' LEAVE TO AMEND AS TO THE SIXTH CAUSE OF ACTION.

THE
MOTION TO STRIKE THE PUNITIVE DAMAGES AND TREBLE DAMAGES ALLEGATIONS IS GRANTED WITH 20 DAYS' LEAVE TO AMEND.

Defendant
TAYYAR TO GIVE NOTICE.

IT IS SO ORDERED.